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Prejudicial effect of federal district court reporter's omissions in recording judicial proceedings, where such omissions constitute failure to comply with court Reporter Act, 28 U.S.C.A. § 753(b)

TABLE OF CONTENTS

Article Outline
Index
Table of Cases, Laws, and Rules
Research References

ARTICLE OUTLINE

§ 1[a] Introduction—Scope; text of relevant provisions of 28 U.S.C.A. § 753(b)
§ 1[b] Introduction—Related matters
§ 2 Background
§ 3[a] Summary and comment—Generally
§ 3[b] Summary and comment—Practice pointers
§ 4 View that omissions in recording are not prejudicial per se
§ 5[a] Omissions in recording as prejudicial, so as to warrant relief under particular circumstances: where judgment is challenged directly, on motion for new trial or on appeal—Omissions held not prejudicial
§ 5[b] Omissions in recording as prejudicial, so as to warrant relief under particular circumstances: where judgment is challenged directly, on motion for new trial or on appeal—Omissions held prejudicial, so as to warrant new trial
§ 5[c] Omissions in recording as prejudicial, so as to warrant relief under particular circumstances: where judgment is challenged directly, on motion for new trial or on appeal—Omissions held to necessitate remand for hearing as to whether prejudicial error occurred
§ 6[a] Where judgment is challenged collaterally, on motion to vacate sentence under 28 U.S.C.A. § 2255—Omissions held not ground for § 2255 relief
§ 6[b] Where judgment is challenged collaterally, on motion to vacate sentence under 28 U.S.C.A. § 2255—Omissions held to necessitate § 2255 hearing
§ 6[c] Where judgment is challenged collaterally, on motion to vacate sentence under 28 U.S.C.A. § 2255—Omissions held ground for relief
§ 7 Waiver of right to complain of omissions
§ 8 Curing of omissions
Research References

INDEX

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Acceptance of plea of guilty, insufficient recording of proceedings involving § 6[b]
Appeal, judgment challenged directly on § 5
Arguments of counsel, omissions as to §§ 4, 5, 6[a], 7
Arraignment proceedings, omissions as to § 6[b]
Background § 2
Civil proceedings, omissions in § 5[a], 5[b]
Comment § 3
Conferences or conversations outside hearing of jury, omissions as to §§ 4, 5[a], 6[a], 7
Conflicting local practice as to extent of recording, requirements of § 753(b) as prevailing over § 5[b]
Consent of parties to omission as waiver § 7
Conversation between trial judge and jury foreman, failure to record § 6[a]
Criminal proceedings, omissions in §§ 4- 8
Curing of omissions § 8
Effect where judgment challenged collaterally on motion to vacate sentence under 28 U.S.C.A., § 2255§ 6
Effect where judgment challenged directly § 5
Failure to make timely objection to court reporter's omissions § 7
Harmless error provisions of Federal Rules as factor § 4
Instructions, failure to record proceedings in which jury given additional instruction after retirement § 5[b]
Introduction § 1
Judge's direction that reporter not record certain remarks to counsel § 5[a]
Judge's remarks to counsel during recess, omissions as to § 5[a]
Jury selection proceedings, omissions as to §§ 4, 5[a], 5[b], 6[a], 7, 8
Local practice of not recording closing arguments unless counsel requested recording, reporter following § 5[b]
Motion for new trial, judgment challenged directly on § 5
    omissions as necessitating § 2255 hearing § 6[b]
    omissions as not ground for § 2255 relief § 6[a]
Opening statements of counsel, omission as to § 5[b]
"Plain error," omission in recording as §§ 3[a], 7
Practice pointers § 3[b]
Prejudicial or nonprejudicial character under particular circumstances §§ 5, 6
Prejudicial per se, view that omissions are not § 4
Related matters § 1[b]
Remand for hearing as to whether prejudicial error occurred, omissions held to necessitate § 5[c]
Scope of annotation § 1[a]
Sentencing proceedings, omissions as to § 6[b]
Sidebar conversations or conferences, omissions as to §§ 4, 5[a], 6[a]
Special qualification of jury, failure to record § 8
Summary § 3
Supplemental record as curing omissions in recording § 8
Terminology of relevant provisions of statute § 1[a]
Terms of additional instruction given after retirement of jury, failure to record § 5[b]
Untimeliness of objection to omission § 7
Voir dire examination of jurors, omissions as to §§ 4, 5[a], 5[b], 6[a], 7, 8
Waiver of counsel, omissions concerning § 6[a]
Waiver of right to complain § 7

Table of Cases, Laws, and Rules

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United States
28 U.S.C.A. §§ 455, 2255. See 6[a]
28 U.S.C.A. § 753. See 2, 4, 5[a]
28 U.S.C.A. § 753(b). See 1[a], 2, 4, 5[a], 5[b], 6[c], 7
28 U.S.C.A. § 2255. See 1[a], 3[a], 6[a], 6[b], 6[c]

Supreme Court
Antoine v. Byers & Anderson, Inc., 508 U.S. 429, 113 S. Ct. 2167, 124 L. Ed. 2d 391 (1993) — 2
Miller v. U.S., 317 U.S. 192, 317 U.S. 601, 63 S. Ct. 187, 87 L. Ed. 179 (1942) — 2

First Circuit
Sabatier v. Dabrowski, 586 F.2d 866 (1st Cir. 1978) — 4
U.S. v. Morales-Madera, 352 F.3d 1, 62 Fed. R. Evid. Serv. 1426 (1st Cir. 2003) — 4
U.S. v. Vazquez Guadalupe, 407 F.3d 492 (1st Cir. 2005) — 4

Third Circuit
Marron v. Atlantic Refining Co., 176 F.2d 313 (3d Cir. 1949) — 3[b]
Stirone v. U.S., 341 F.2d 253 (3d Cir. 1965) — 4, 6[a], 7
U.S. v. Sams, 219 F. Supp. 164 (W.D. Pa. 1963) — 2, 4, 5[a], 7
U.S. v. Sigal, 341 F.2d 837 (3d Cir. 1965) — 3[a], 4, 5[a], 5[c], 7

Fourth Circuit
Herron v. U.S., 512 F.2d 439 (4th Cir. 1975) — 6[c]
U.S. v. Bebik, 333 F.2d 736 (4th Cir. 1964) — 4, 6[a]
U.S. v. Gillis, 773 F.2d 549 (4th Cir. 1985) — 4
U.S. v. Murray, 352 F.2d 397 (4th Cir. 1965) — 3[b]
U.S. v. Smith, 337 F.2d 49 (4th Cir. 1964) — 6[a]
U.S. v. Snead, 527 F.2d 590 (4th Cir. 1975) — 5[a]
U.S. v. Taylor, 303 F.2d 165 (4th Cir. 1962) — 6[b]
U.S. v. Thompson, 598 F.2d 879 (4th Cir. 1979) — 5[a]

Fifth Circuit
Addison v. U.S., 317 F.2d 808 (5th Cir. 1963) — 4, 5[a], 7
Aeby v. U.S., 409 F.2d 1 (5th Cir. 1969) — 4, 6[a]
Burns v. U.S., 323 F.2d 269 (5th Cir. 1963) — 4, 5[a]
Calhoun v. U.S., 384 F.2d 180 (5th Cir. 1967) — 4, 5[b]
Casados v. U.S., 354 F.2d 688 (5th Cir. 1966) — 6[a]
Casalman v. Upchurch, 386 F.2d 813 (5th Cir. 1967) — 4, 5[a]
Commercial Credit Equipment Corp. v. L & A Contracting Co., Inc., 549 F.2d 979 (5th Cir. 1977) — 4
Fowler v. U.S., 310 F.2d 66 (5th Cir. 1962) — 5[b]
Hale v. U.S., 435 F.2d 737 (5th Cir. 1970) — 3[b], 8
Heidrich v. U.S., 373 F.2d 540 (5th Cir. 1966) — 4, 5[a], 5[b]
Houston v. U.S., 419 F.2d 30 (5th Cir. 1969) — 4, 6[a], 7
Ricard v. U.S., 148 F.2d 895 (C.C.A. 5th Cir. 1945) — 2
Stansbury v. U.S., 219 F.2d 165 (5th Cir. 1955) — 7
Stephens v. U.S., 289 F.2d 308 (5th Cir. 1961) — 5[b]
Strauss v. U.S., 311 F.2d 926 (5th Cir. 1963) — 4, 5[a]
U.S. v. Brumley, 560 F.2d 1268 (5th Cir. 1977) — 4, 5[b]
U.S. v. Long, 419 F.2d 91, 12 A.L.R. Fed. 578 (5th Cir. 1969) — 4, 5[a]
U.S. v. McGarrity, 559 F.2d 1386 (5th Cir. 1977) — 5[a]
U.S. v. Selva, 559 F.2d 1303 (5th Cir. 1977) — 5[b]

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U.S. v. Smith, 591 F.2d 1105 (5th Cir. 1979) — 4
U.S. v. Upshaw, 448 F.2d 1218 (5th Cir. 1971) — 5[b]

Sixth Circuit
U.S. v. Gallo, 763 F.2d 1504 (6th Cir. 1985) — 5[a], 7

Eighth Circuit
DeLuca v. U.S., 243 F. Supp. 2d 982 (E.D. Mo. 2003) — 6[a]
Vickers v. U. S., 157 F.2d 285 (C.C.A. 8th Cir. 1946) — 2

Ninth Circuit
Brown v. U.S., 314 F.2d 293 (9th Cir. 1963) — 4, 5[a], 5[c], 6[a], 6[b], 7
McClyman v. Hamilton, 180 F.2d 965 (9th Cir. 1950) — 4, 5[a]
U.S. v. Calaway, 524 F.2d 609 (9th Cir. 1975) — 5[a]
U.S. v. Doyle, 786 F.2d 1440 (9th Cir. 1986) — 5[a]
U.S. v. Weiner, 578 F.2d 757 (9th Cir. 1978) — 7

Tenth Circuit
Edwards v. U.S., 374 F.2d 24 (10th Cir. 1966) — 4, 5[a]
Marsh v. U.S., 435 F. Supp. 426 (W.D. Okla. 1976) — 5[a]
Parrott v. U.S., 314 F.2d 46 (10th Cir. 1963) — 5[b]
U.S. v. Haber, 251 F.3d 881 (10th Cir. 2001) — 5[b]
U.S. v. Kerr, 35 Fed. Appx. 728 (10th Cir. 2002) — 5[a]
U.S. v. Taverna, 348 F.3d 873, 62 Fed. R. Evid. Serv. 1155 (10th Cir. 2003) — 4

Eleventh Circuit
Bankey v. Sanford, 74 F. Supp. 756 (N.D. Ga. 1947) — 2
U.S. v. Stefan, 784 F.2d 1093 (11th Cir. 1986) — 5[a]

District of Columbia Circuit
United States v Workcuff (1970) 137 App DC 263, 422 F2d 700 — 3[a], 3[b], 4, 5[b]
U.S. v. Perkins, 498 F.2d 1054 (D.C. Cir. 1974) — 5[a]

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§ 1[a] Introduction—Scope; text of relevant provisions of 28 U.S.C.A. § 753(b)

This annotation collects and analyzes the cases determining the prejudicial effect[1] of a Federal District Court reporter's omissions[2] in recording[3] judicial proceedings, where such omissions are held or assumed to have constituted a failure to comply[4] with the Court Reporter Act, 28 U.S.C.A. § 753(b),[5] which provides, among other things, that a Federal District Court reporter "shall record verbatim. . . (1) all proceedings in criminal cases had in open court;[6] (2) all proceedings in other cases had in open court unless the parties with the approval of the judge shall agree specifically to the contrary; and (3) such other proceedings as a judge of the court may direct or as may be required by rule or order of court or as may be requested by any party to the proceeding."

§ 1[b] Introduction—Related matters

Related Annotations are located under the Research References heading of this Annotation.

§ 2. Background

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[Cumulative Supplement]

As late as 1942, it was noted by the United States Supreme Court, in Miller v United States (1942) 317 US 192, 87 L Ed 179, 63 S Ct 187, reh den 317 US 713, 87 L Ed 567, 63 S Ct 438, that there was no federal law creating the position of official court stenographer or requiring the stenographic report of any case, civil or criminal.

This situation was changed in 1944 by means of the enactment of the Court Reporter Act. According to a judicial opinion written some years later, in United States v Sams (1963, DC Pa) 219 F Supp 164, convictions affd in part on other grounds and vacated in part on other grounds (CA3) 340 F2d 1014, cert den 380 US 974, 14 L Ed 270, 85 S Ct 1336, the Court Reporter Act was the result of lobbying by court reporters' organizations and was enacted in order to provide that reporters should receive a regular and fixed annual salary in lieu of the former practice of compensating them on a piecework basis by the sale of transcripts, and as quid pro quo for this salary, it was necessary that the Act elaborate the duties of the reporters.

Although the salaries and duties of Federal District Court reporters were specified in the Court Reporter Act, Congress failed to make immediate appropriations of the funds necessary for the payment of such reporters' salaries, and these funds did not become available until several months after the passage of the Act. It was held in various cases (see, for example, Ricard v United States (1945, CA5 Fla) 148 F2d 895; Vickers v United States (1946, CA8 Ark) 157 F2d 285; Bankey v Sanford (1947, DC Ga) 74 F Supp 756, affd per curiam (CA5) 165 F2d 788, cert den 333 US 847, 92 L Ed 1130, 68 S Ct 649) that where this lack of appropriations resulted in a District Court's failure to use a court reporter, it was not error to proceed with a case without having a court reporter present to record the proceedings.

CUMULATIVE SUPPLEMENT

Cases:

A court reporter for a Federal District Court is not absolutely immune from damages liability for failing to produce a transcript of a federal criminal trial, because (1) there is an absence of a common-law immunity tradition involving court reporters themselves, where (a) it was not until the late 19th century that official court reporters began to appear in the state courts, (b) prior to the enactment in 1944 of the Court Reporter Act (28 U.S.C.A. § 753, as amended), the federal system did not provide for official court reporting, and (c) court reporters were not among the class of persons protected by judicial immunity in the 19th century; (2) a proposed analogy to common-law judges who made handwritten notes during trials is not persuasive, where (a) the function performed by such judicial notetakers was significantly different from that performed by modern court reporters, given that federal reporters are charged by 28 U.S.C.A. § 753(b) with producing a verbatim transcript, whereas common-law judges exercised discretion and judgment in deciding exactly what and how much they would write, and (b) even if the functions were similar, it would remain to be considered whether judges who transcribed an entire proceeding verbatim would themselves be entitled to absolute immunity; (3) the functional approach to immunity does not require that absolute immunity be extended to court reporters as part of the judicial function, as reporters do not exercise the kind of judgment that is protected by the doctrine of judicial immunity, where (a) the § 753(b) duty to produce verbatim transcripts affords no discretion in carrying out this duty to reporters, who are to record, as accurately as possible, what transpires in court, and (b) it is not sufficient for absolute immunity purposes that (i) the task of producing such verbatim transcripts may be difficult, (ii) reporters who perform the task well may be highly skilled, or (iii) the task may be extremely important or indispensable to the appellate process; and (4) even assuming that some policy arguments raised by the supporters of absolute immunity are relevant to the United States Supreme Court's immunity decision, the arguments are not persuasive, where (a) the Supreme Court's understanding is that cases of this kind are relatively rare, given that the supporters have not provided empirical evidence demonstrating the existence of any significant volume of vexatious and burdensome actions against reporters, even in the Federal Circuits in which reporters have not been ruled absolutely immune, (b) if a large number of cases materializes and if the Supreme Court has misjudged the burden's significance, then a full review of the countervailing policy considerations by Congress may result in appropriate amendment to the Court Reporter Act, and (c) the Supreme Court has no reason to believe that the federal judiciary, which

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is familiar with the special virtues and concerns of the court reporting profession, will be unable to administer justice to its members fairly. Antoine v. Byers & Anderson, Inc., 508 U.S. 429, 113 S. Ct. 2167, 124 L. Ed. 2d 391 (1993).

[Top of Section]

[END OF SUPPLEMENT]

§ 3[a] Summary and comment—Generally

There has been general agreement among the courts that where a Federal District Court reporter has omitted recording portions of a judicial proceeding and has thereby violated § 753(b), such omissions in recording do not constitute prejudicial error per se and thus will not result in automatic reversal of the District Court's judgment.[7]

It has been indicated in several cases that a party who seeks to obtain relief on the basis of a court reporter's omissions in recording must specify the particular way in which he has allegedly been prejudiced as a result of the omissions,[8] and that the usual way of doing this is to refer to specific errors (other than the omissions themselves) which occurred at the trial but which were not recorded by the reporter.[9] Moreover, some cases have indicated that even if the circumstances were such that a reporter's omissions in recording would have been a proper ground for a direct attack on a conviction, the omissions nevertheless did not constitute a ground for collaterally attacking the conviction on a motion to vacate sentence under 28 U.S.C.A. § 2255[10] However, there is some authority supporting the view that even if a party has failed to specify any error which was not recorded or any particular way in which he was allegedly prejudiced as a result of a reporter's omissions in recording, (1) the omissions in recording may have made it impossible to reconstruct, or even to provide any recollection of, certain errors which occurred at the trial, and a new trial should therefore be required,[11] or (2) instead of either denying relief or ordering a new trial, the court should require a hearing at which the parties, their attorneys, and any other available persons who were present during the unrecorded portions of the proceedings will be given an opportunity to help reconstruct, as fully as possible, the matters which the reporter failed to record, so that it can be ascertained whether or not any prejudicial errors occurred.[12]

Although some cases have indicated that the right to complain of a reporter's omissions in recording was effectively waived, either by express agreement or by failure to make a timely objection to the omissions, there is some authority supporting the view that a reporter's omissions in recording may constitute "plain error," as to which no objection is necessary, and there is also some authority supporting the view that the requirement of § 753(b)(1) that the reporter shall record verbatim "all proceedings in criminal cases had in open court" is not even subject to waiver.[13]

It has been indicated that a court reporter's omissions in recording cannot be regarded as prejudicial error where the omissions have been cured by means of a supplemental record setting forth verbatim the matters which were omitted.[14]

§ 3[b] Summary and comment—Practice pointers

If appellate review of a Federal District Court's judgment is sought, and if the District Court reporter, contrary to § 753(b), has failed to record part of the proceedings, it may be advisable for an attorney to attempt to remedy the reporter's omissions by providing as specific and complete an account of the unrecorded matters as possible, either by means of filing appropriate affidavits, or by means of obtaining a supplemental record in accordance with Rule 10(e) of the Federal Rules of Appellate Procedure (formerly Rule 75(h) of the Federal Rules of Civil Procedure), which provides: "If anything material to either party is omitted from the record by error or accident. . ., the parties by stipulation, or the district court, either before or after the record is transmitted to the court of appeals, or the court of appeals, on proper suggestion or of its own initiative, may direct that the omission. . . be corrected, and if necessary that a supplemental record be certified and transmitted."[15] (See also Rule 10(c)

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of the Federal Rules of Appellate Procedure, which provides that if no report of the evidence or proceedings at a hearing or trial was made, or if a transcript is unavailable, the appellant may prepare a statement of the evidence or proceedings from the best available means, including his recollection; that the statement shall be served on the appellee, who may serve objections or propose amendment thereto within 10 days after service; and that thereupon the statement and any objections or proposed amendments shall be submitted to the District Court for settlement and approval and as settled and approved shall be included by the clerk of the District Court in the record on appeal.) For instance, if an appellant alleges that he has been prejudiced by the reporter's failure to record part of the proceedings, and if the appellee's attorney, by means of affidavits or a supplemental record, can establish that the omissions in recording could not possibly have been harmful to the appellant, it would appear advisable for the appellee's attorney to assure that such affidavits or supplemental record are provided,[16] so that it will not be necessary for the appellate court, as it has done in some cases,[17] to remand the case for a hearing or to order a new trial. Conversely, it would appear advisable for the appellant's attorney to provide appropriate affidavits or a supplemental record if he believes that he can thereby establish (1) that a specified error which occurred at the trial was not recorded, and (2) that as a result of the omissions in recording, it is not possible to fully reconstruct the record or to determine whether the specified error was harmless.[18]

In addition to or instead of contending simply that a court reporter's omissions in recording did not harm the appellant, the appellee's attorney may find it advisable to contend under appropriate circumstances that (1) the appellant has effectively waived his right to complain of the omissions,[19] or (2) that the omissions occurred in connection with proceedings which § 753(b) did not even require to be recorded.[20]

§ 4. View that omissions in recording are not prejudicial per se

[Cumulative Supplement]

It has been generally held that even if a Federal District Court reporter's omissions in recording judicial proceedings constitute a failure to comply with § 753(b) and thus constitute error, such omissions are not prejudicial per se, that is, they are not automatically a ground for granting a new trial or for reversing a judgment.

Thus, affirming convictions for violations of federal wagering tax laws, in United States v Sigal (1965, CA3 Pa) 341 F2d 837, cert den 382 US 811, 15 L Ed 2d 60, 86 S Ct 23, the court noted that although the court reporter had failed to record the voir dire examination of prospective jurors and had thereby failed to act in accordance with § 753(b), more than a mere violation of § 753(b) was required for reversal; it was necessary for there to be as showing of prejudice; and a failure to comply with § 753(b) did not warrant an automatic reversal.

Observation

The decision in the Sigal Case was expressly based at least in part on the harmless error provision contained in **Rule 52(a) of the Federal Rules of Criminal Procedure**, which states: "Any error, defect, irregularity or variance which does not affect substantial rights shall be disregarded." A similar provision, applicable to the trial of civil cases rather than criminal cases, is contained in **Rule 61 of the Federal Rules of Civil Procedure**.

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Holding that a court reporter's violation of § 753(b) by failing to be present to record the entire jury selection proceedings was not a ground for a new trial, in United States v Sams (1963, DC Pa) 219 F Supp 164, convictions affd in part on other grounds and vacated in part on other grounds (CA3) 340 F2d 1014, cert den 380 US 974, 14 L Ed 270, 85 S Ct 1336, the court noted that the language of § 753(b) upon which the defendants relied really constituted a job description for the position of court reporter and specified what the reporter must do in order to earn his prescribed compensation; that the mere lack of compliance with § 753 (b) would not, in itself, inure to the benefit of a defendant; and that noncompliance with § 753(b), in itself, and in the absence of relevance to some other situation of separate significance involving a defendant's rights, gave no better basis for a new trial than would a similar provision directing judges to wear robes, deputy marshals to wear a particular sort of uniform while on duty, or court criers to use a particular formula, or to station the American flag at a particular place in the courtroom. The court noted that § 753 was found in that part of the Judicial Code which dealt with the organization and staffing of District Courts; that § 753 followed a section dealing with clerks, law clerks, and secretaries, and preceded provisions relating to the appointment of court criers, bailiffs, and messengers; and that the administrative or directory provisions of § 753(b) did not confer any legal rights upon defendants.

In Addison v United States (1963, CA5 Tex) 317 F2d 808, cert den 376 US 905, 11 L Ed 2d 605, 84 S Ct 658, reh den 376 US 966, 11 L Ed 2d 984, 84 S Ct 1121, it was held that even if a court reporter, by failing to record the arguments of counsel, did not comply with § 753(b), the failure to comply with § 753(b) did not work an automatic reversal, but that it was necessary to make a showing that the failure of the court reporter to record the arguments of counsel constituted prejudicial error.

While holding that prejudicial error occurred under the facts of the instant case, the court recognized in Calhoun v United States (1967, CA5 Miss) 384 F2d 180, that failure to record judicial proceedings as required by § 753(b) was not reversible error per se.

Affirming a conviction involving the transfer of counterfeit notes, in United States v Long (1969, CA5 Ala) 419 F2d 91, 12 ALR Fed 578, the court stated that even if the court reporter had violated § 753(b) by failing to record sidebar conversations between the trial judge and counsel, jury panel voir dire examination, and opening and closing arguments of counsel, the failure to record such proceedings was not per se reversible error, and that in order for reversal to be required, some specific error or prejudice resulting from the failure to record such proceedings had to be called to the court's attention.

In Edwards v United States (1966, CA10 Okla) 374 F2d 24, cert den 389 US 850, 19 L Ed 2d 120, 88 S Ct 48, it was held that even if the failure of the court reporter to record a sidebar conference constituted a failure to comply with § 753(b), this was not prejudicial error per se.

In addition to the cases discussed above, the following cases also support the view that a court reporter's omissions in recording judicial proceedings, though violative of § 753 (b), do not constitute prejudicial error per se:

Third Circuit
Stirone v United States (1965, CA3 Pa) 341 F2d 253, cert den 381 US 902, 14 L Ed 2d 284, 85 S Ct 1446, infra § 6[a]
Fourth Circuit
United States v Bebik (1964, CA4 NC) 333 F2d 736, infra § 6[a]
Fifth Circuit
Strauss v United States (1963, CA5 Fla) 311 F2d 926, cert den 373 US 910, 10 L Ed 2d 412, 83 S Ct 1299 (wherein the Court of Appeals recognized "the necessity of a showing of prejudice")
Burns v United States (1963, CA5 Fla) 323 F2d 269, cert den 376 US 907, 11 L Ed 2d 606, 84 S Ct 660 (wherein the Court of Appeals stated that failure to comply with § 753(b) "is not error per se")
Heidrich v United States (1966, CA5 Fla) 373 F2d 540 (dissenting opinion by Judge Godbold), cert den 387 US 943, 18 L Ed 1330, 87 S Ct 2076, reh den 389 US 893, 19 L Ed 203, 88 S Ct 18
Casalman v Upchurch (1967, CA5 Ala) 386 F2d 813, infra § 5[a]
Aeby v United States (1969, CA5 Tex) 409 F2d 1, infra § 6[a]
Houston v United States (1969, CA5 Ga) 419 F2d 30, infra § 6[a]

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Ninth Circuit
McClyman v Hamilton (1950, CA9 Cal) 180 F2d 965, infra § 5[a]
Brown v United States (1963, CA9 Wash) 314 F2d 293, infra § 5[c]
Dist Col Circuit
United States v Workcuff (1970) 137 App DC 263, 422 F2d 700, infra § 5[b]

CUMULATIVE SUPPLEMENT

Cases:

Court Reporter Act, requiring that all proceedings in criminal cases be recorded verbatim, did not require court reporter to transcribe and translate into English the Spanish-language tapes of conversations as they were being played to jury, in drug trafficking prosecution, since the tapes were not testimony. 28 U.S.C.A. § 753(b). U.S. v. Vazquez Guadalupe, 407 F.3d 492 (1st Cir. 2005).

Even assuming Court Reporter Act was violated when court reporter did not simultaneously transcribe wiretap tape as it was being played to jury, any error was harmless where recording itself was entered into record. 28 U.S.C.A. § 753. U.S. v. Morales-Madera, 352 F.3d 1 (1st Cir. 2003).

In action by defendant challenging extradition certification on basis of gap in transcript of proceedings before magistrate, even assuming that 28 U.S.C.A. § 753 applies to extradition hearing, failure to comply with statute is not prejudicial per se and does not necessarily require new trial or hearing. Sabatier v Dabrowski (CA1 RI) 586 F2d 866.

Defendant-appellant is not prejudiced by inadvertent erasure of portion of non-evidentiary pretrial proceeding from transcript where it is clear that missing portion concerns preliminary discussions of defendant-appellant's insanity defense and testimony of his expert, and where, although defendant-appellant alleges that government promised during those proceedings that it would under no circumstances attempt to elicit evidence of defendant-appellant's prior conviction and its surrounding circumstances, trial court and government concur that no such agreement was made. United States v Gillis (1985, CA4 Md) 773 F2d 549.

Even though criminal defendant filed formal written motion requesting that all bench conferences and proceedings in chambers be transcribed by official court reporter, but numerous bench conferences and conferences in chambers were held without recording of proceedings, court permitting counsel for defendant to make record at next recess of court, court's failure to comply with 28 U.S.C.A. § 753 did not constitute error per se, even though court did not take into account language in United States v Brumley (CA5 Ga) 560 F2d 1268, that verbatim transcript requirement is mandatory, where rulings were not complex, no specific prejudice arising out of failure to record any particular ruling had been demonstrated, and defendant's version of all unreported rulings and directions by trial court had been considered by Court of Appeals; however, in future, requirements of Brumley with respect to mandatory nature of recording requirement will be enforced. United States v Smith (CA5 Ala) 591 F2d 1105.

While requirements of § 753(b) are mandatory and not permissive, violation is not reversible error per se. Commercial Credit Equipment Corp. v L & A Contracting Co. (CA5 Miss) 549 F2d 979, reh den (CA5 Miss) 553 F2d 100.

Failure to comply with the Court Reporter's Act, requiring proceedings in all criminal cases to be recorded, is not per se prejudicial error. 28 U.S.C.A. § 753(b). U.S. v. Taverna, 348 F.3d 873 (10th Cir. 2003).

[Top of Section]

[END OF SUPPLEMENT]

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§ 5[a] Omissions in recording as prejudicial, so as to warrant relief under particular circumstances: where judgment is challenged directly, on motion for new trial or on appeal—Omissions held not prejudicial

[Cumulative Supplement]

Where a Federal District Court reporter's omissions in recording judicial proceedings have been asserted to be a ground for a direct challenge to a judgment, either on a motion for a new trial or on an appeal from the judgment, numerous cases have held, under various circumstances, that such omissions, though constituting a failure to comply with § 753(b), were not prejudicial. In some of these cases, the holding that the omissions in recording were not prejudicial has been based upon the conclusion that the party who challenged the omissions had failed to specify any particular way in which he could have been prejudiced as a result of the omissions; in other cases, the holding that the omissions in recording were not prejudicial has apparently been based upon the conclusion that the omissions were affirmatively demonstrated to have been harmless.

Thus, in United States v Sigal (1965, CA3 Pa) 341 F2d 837, cert den 382 US 811, 15 L Ed 2d 60, 86 S Ct 23, the court, affirming convictions for violations of federal wagering tax laws, held that the court reporter's failure to record the voir dire examination of prospective jurors, as required by § 753(b), constituted harmless error, since (1) there was no contention otherwise, (2) the record was barren of any support for such contention if it had been made, and (3) the realities were that the voir dire examination contained no error at all and that none was ever contended for or even alleged.

Comment

It was maintained in a dissenting opinion by Chief Judge Biggs in the Sigal Case, supra, that without the aid of a transcript containing the complete record of the proceedings, an attorney could allege only those errors which he remembered or which he thought he remembered as having occurred; that if **§ 753(b)** had been complied with, the attorney would not be forced to rely on his memory; that in accordance with the plain-error provision of **Rule 52(b) of the Federal Rules of Criminal Procedure**, when a federal court was asked to affirm a conviction, it had the duty not to affirm unless it could ascertain from a fair reading of the record that no gross miscarriage of justice would occur if it did so; and that it could not be known in the present case whether there had been such prejudicial error. Views similar to those expressed by Chief Judge Biggs may be found in the majority opinion in **Brown v United States (1963, CA9 Wash) 314 F2d 293**, infra **§ 5[c]**.

Denying a motion for a new trial following the defendants' conviction for violation of federal wagering tax laws, in United States v Sams (1963, DC Pa) 219 F Supp 164, convictions affd in part on other grounds and vacated in part on other grounds (CA3) 340 F2d 1014, cert den 380 US 974, 14 L Ed 270, 85 S Ct 1336, the court held that even if § 753(b) had been violated by the failure of the court reporter to be present during the entire period when the jury was being selected, the defendants were not in any way prejudiced by reason of the manner in which the jury was selected, it being noted that the defendants' attorneys had conceded (1) that in fact there were no additional questions which the defendants had wished to put to the jurors and which they were prevented from putting, and (2) that no untoward or inflammatory incidents had occurred which called for recording.

Affirming a conviction involving fraudulent conduct in violation of the bankruptcy laws, in Strauss v United States (1963, CA5 Fla) 311 F2d 926, cert den 373 US 910, 10 L Ed 2d 412, 83 S Ct 1299, the court recognized the necessity of a showing of prejudice resulting from a failure to comply with § 753(b), and the court concluded that its attention had not been called to any specific error or prejudice resulting from the court reporter's omissions in the instant case. The defendant alleged that on

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15 occasions during the trial, conferences were held between the trial judge and counsel out of the hearing of the jury, and these conferences were not recorded by the court reporter. The defendant further alleged that the trial judge's errors in admitting various pieces of evidence would have been apparent from the statements made by the trial judge and counsel during these unrecorded conferences, and that a record of these conferences would have revealed the conditions upon which the evidence was admitted and the representations of the government as to how the evidence would be subsequently connected up. The defendant stated that because the conferences were not recorded, he was unable to present argument as to any error of the trial court which would otherwise have been apparent, and that a supplemental record could not cure this defect, since an attempt to reconstruct such a large number of complicated arguments would be futile. Moreover, the defendant alleged that the court reporter did not record the examination of the prospective jurors. Concluding that no prejudicial error was shown, the court noted that no effect had been made to reconstruct the substance of the unrecorded conferences for submission on a supplemental record; that no specific error or prejudice resulting therefrom had been called to the court's attention; that to permit an appellant simply to claim error for failure to record under § 753(b), without more, would eliminate the necessity of a showing of prejudice; and that the error may well have been harmless when considered in the light of the facts which were reported.

In Addison v United States (1963, CA5 Tex) 317 F2d 808, cert den 376 US 905, 11 L Ed 2d 605, 84 S Ct 658, reh den 376 US 966, 11 L Ed 2d 984, 84 S Ct 1121, the court, affirming convictions involving securities fraud and mail fraud, held that an error consisting of the court reporter's failure to record the arguments of counsel, as required by § 753(b), would not work a reversal without a showing that it was prejudicial error, and that without even a contention being made as to the language used or other conduct of counsel which went beyond the permitted range of oral argument, no effort was made to show that such failure prejudiced the defendants. It was noted that the record was silent as to any objection made or any motion of any kind filed with respect to any alleged impropriety during the course of the final arguments of counsel, and that the defendants, in their original brief filed in the present case, did not attempt to state that any inflammatory or other improper comments had been made by counsel during the arguments.

Affirming a judgment against the defendant in a criminal prosecution for violations of federal securities laws, in Burns v United States (1963, CA5 Fla) 323 F2d 269, cert den 376 US 907, 11 L Ed 2d 606, 84 S Ct 660, the court concluded that although some of the proceedings in the case were not recorded by the reporter as required by § 753(b), no prejudicial error could be found.

See, to the same effect, the dissenting opinion by Judge Godbold in Heidrich v United States (1966, CA5 Fla) 373 F2d 540, cert den 387 US 943, 18 L Ed 2d 1330, 87 S Ct 2076, reh den 389 US 893, 19 L Ed 2d 203, 88 S Ct 18.

Affirming a judgment in favor of the plaintiff in a civil action, in Casalman v Upchurch (1967, CA5 Ala) 386 F2d 813, the court held that although the court reporter violated § 753(b) by failing to record counsel's closing arguments to the jury, the defendants failed to demonstrate prejudicial error arising from this failure to comply with § 753(b), despite the fact that the defendants' attorney had objected several times, during the argument of the plaintiff's attorney, to statements claimed to be prejudicial, and despite the fact that the defendants apparently were contending on appeal that remarks made during the closing argument of the plaintiff's attorney were both prejudicial and unrecorded.

Noting that in order to require reversal on the basis of a court reporter's failure to record proceedings, in violation of § 753(b), some specific error or prejudice resulting from the failure to record the proceedings had to be called to the court's attention, the court concluded, in United States v Long (1969, CA5 Ala) 419 F2d 91, 12 ALR Fed 578, that in the present case no such specific objections or allegations had been made either before the trial court or on appeal.

Affirming a judgment dismissing creditors' petition seeking to have the defendant involuntarily declared bankrupt, in McClyman v Hamilton (1950, CA9 Cal) 180 F2d 965, the court concluded that even if the failure to record certain remarks constituted a failure to comply with § 753 (b), no prejudicial error had occurred in connection with an episode in which the trial judge, over counsel's objection, had directed the court reporter not to record the judge's remarks with respect to calling a certain witness to the stand. It was alleged that the direction not to record the judge's remarks occurred during an argument between the judge and counsel over the judge's direction that a certain witness either would be the next one called or would not be permitted to be

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called to stand at all. It was noted that the episode occurred after the court had said that a recess would be taken; that the witness referred to was excused by the judge subject to her being recalled by the judge; and that no error as to this order was assigned.

Affirming convictions involving securities fraud and mail fraud, in Edwards v United States (1966, CA10 Okla) 374 F2d 24, cert den 389 US 850, 19 L Ed 2d 120, 88 S Ct 48, the court held that even if the failure of the court reporter to report a sidebar conference constituted a failure to comply with § 753(b), no prejudicial error was committed against the defendant. It was noted that numerous sidebar conferences among court and counsel were not recorded, but that the only unrecorded conference with respect to which specific error and prejudice were alleged occurred in connection with the presentation of character evidence which the defendant claimed was unduly restricted. It was alleged by the defendant that at an unrecorded conference, the trial judge limited the defendant's attorney in his further inquiry as to the defendant's reputation as a law-abiding citizen. However, the court emphasized that subsequent to this conference, seven character witnesses for the defendant testified without contradiction that the defendant had a reputation as a good, law-abiding citizen. Accordingly, the court concluded that even if the defendant's allegations as to what occurred at the unrecorded conference were correct, no prejudicial error resulted, and it was thus unnecessary to remand the case for a new trial or to remand for the purpose of a hearing on possible prejudice.

CUMULATIVE SUPPLEMENT

Cases:

Even though tape recording of closing argument without stenographic recording is violation of 28 U.S.C.A. § 753, defendant was not prejudiced by failure to record closing argument stenographically where tape was adequate to permit court reproter to prepare complete transcript. United States v Thompson (CA4 NC) 598 F2d 879.

Direction of 28 U.S.C.A. § 753(b) requiring recording of all proceedings in criminal cases had in open court is simple and clear and hence should be obeyed; but while it was error for trial court not to have reporter take down bench conferences and, instead, informing defense counsel that he could dictate substance of each conference to reporter during recesses, such error was not ground for reversal where record failed to disclose prejudice to defendant as result of noncompliance with statute. United States v Snead (CA4 Va) 527 F2d 590.

Although Court of Appeals does not endorse failure of record to contain verbatim report of all proceedings in open court, failure of record to contain verbatim transcript of discussion at bench was harmless under 28 U.S.C.A. § 753 since it was clear from remainder of transcript that unrecorded discussion at bench resulted in stipulation making unnecessary examination of government witness. United States v McGarrity (CA5 Tex) 559 F2d 1386, reh den (CA5 Tex) 564 F2d 98 and cert den (US) 55 L. Ed. 2d 793, 98 S Ct 1283.

In determining whether hardship or prejudice results from trial court's failure to record every statement made in open court, reviewing court must consider all circumstances in record surrounding omission; failure to record comments made by judge or counsel to jury will generally be viewed with greater disfavor than those made during side bar discussions, and court's offer to counsel to record objections following "off-the-record" discussion lessens risk of prejudice and reversal. United States v Gallo (1985, CA6 Ohio) 763 F2d 1504, cert den (US) 88 L Ed 2d 798, 106 S Ct 826 and cert den (US) 88 L Ed 2d 800, 106 S Ct 828 and cert den (US) 89 L Ed 2d 314, 106 S Ct 1200.

Failure of court reporter to record contents of tape played at criminal trial where played tapes were among others admitted into evidence and made available to jury during deliberations was not reversible error; court of appeals, by having all tapes available to it in review of record which defendant alleged contained insufficient evidence to convict, would be able to adequately evaluate such claim. United States v Doyle (1986, CA9 Mont) 786 F2d 1440, 16 ELR 20519, cert den 479 US 984, 93 L Ed 2d 576, 107 S Ct 572.

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Conversations at bench between judge and prospective jurors prior to voir dire to determine those prospective jurors who for legitimate personal hardship should not be required to serve in potentially lengthy trial did not constitute part of criminal trial subject to recordation requirement of 28 U.S.C.A. § 753 and it was not prejudicial error for judge to hold those proceedings outside hearing range of defense counsel and court reporter. United States v Calaway (CA9 Cal) 524 F2d 609, cert den 424 US 967, 47 L. Ed. 2d 733, 96 S Ct 1462.

District court's violation of Court Reporters Act in failing to record trial proceedings did not warrant reversal of defendant's conviction for possession of marijuana with intent to distribute, where defendant was not prejudiced by district court's use of its statement of facts. 28 U.S.C.A. § 753(b). U.S. v. Kerr, 35 Fed. Appx. 728 (10th Cir. 2002).

Not every failure of court reporter to comply with 28 U.S.C.A. § 753 is prejudicial error per se; thus, mere fact that notes of proceedings in connection with imposition of sentence could not be found did not entitle petitioner to be summarily discharged and petitioner was not prejudiced by omission of transcript of sentencing because District Court accepted as true herein his allegation that trial court did not inform him of his appeal rights. Marsh v United States (1976, DC Okla) 435 F Supp 426.

Absence of transcripts from one hour and forty-five minute bench conference did not constitute substantial and significant omission from record which would mandate reversal under 28 U.S.C.A. § 753(b) United States v Stefan (1986, CA11 Fla) 784 F2d 1093, cert den 479 US 855, 93 L Ed 2d 125, 107 S Ct 193 and cert den 479 US 1009, 93 L Ed 2d 706, 107 S Ct 650.

Court reporter's obligation under 28 U.S.C.A. § 753(b) is to provide verbatim transcript; court cannot countenance any practice by court reporters with respect to jury instructions of not taking down all of what judge actually said in courtroom but leaving gaps to be filled later by reference to standard charge; however, where experienced reporter was able to provide reconstruction of original reporter's notes, and where gaps consisted only of occasional word which could be supplied by context, such "reconstructed" charge was held to be accurate transcript of what judge told jury. U.S. v. Perkins, 498 F.2d 1054 (D.C. Cir. 1974).

[Top of Section]

[END OF SUPPLEMENT]

§ 5[b] Omissions in recording as prejudicial, so as to warrant relief under particular circumstances: where judgment is challenged directly, on motion for new trial or on appeal—Omissions held prejudicial, so as to warrant new trial

[Cumulative Supplement]

In several cases, it has been held that where a court reporter's omissions in recording judicial proceedings constituted a failure to comply with § 753(b), such omissions occurred under such circumstances as to warrant that an appellate court, on direct review, reverse the judgment below and order a new trial. In some of these cases, the holding that a new trial was necessary was based on the conclusion that the omissions in recording made it imposible to determine whether or not other specified errors were prejudicial.

Thus, reversing a conviction of interstate transportation for the purpose of prostitution, and remanding the case for a new trial, in Stephens v United States (1961, CA5 Tex) 289 F2d 308, the court held that where the court reporter, in violation of § 753(b), had failed to record certain proceedings, such as the examination of the prospective jurors and counsel's arguments to the jury, and where the defendant's attorney insisted that he needed a transcript of all of the proceedings in order to enable him properly to present "certain specified errors" to the Court of Appeals, it could not be adjudicated that there was no showing that any errors which might have been reflected by a full transcript were harmless, especially since the failure of the court reporter to observe the terms of § 753(b) was undisputed, and the result was that a full transcript was not available to the court.

Reversing a conviction involving the sale of heroin, in Fowler v United States (1962, CA5 Fla) 310 F2d 66, the court concluded that since the closing argument of the government's attorney to the jury was not recorded and was therefore not included in

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the transcript, the court was unable to determine whether the government's attorney, in his closing argument, had made such a prejudicial comment as to require reversal, and that, this being so, it followed that a new trial was required. The defendant contended that the government's attorney had made an improper and prejudicial comment upon the defendant's failure to testify, but the government contended that its attorney had merely made a proper comment to the effect that the testimony of government witnesses was uncontradicted. In accordance with the local practice of not recording closing arguments unless counsel so requested, the court reporter did not record the closing arguments in the instant case, but the Court of Appeals, in remanding the case for a new trial, noted that the requirements of § 753(b) were mandatory, and that local practice could not override § 753(b).

See, to the same effect, the dissenting opinion by Judge Godbold in Heidrich v United States (1966, CA5 Fla) 373 F2d 540, cert den 387 US 943, 18 L Ed 2d 1330, 87 S Ct 2076, reh den 389 US 893, 19 L Ed 2d 203, 88 S Ct 18.

In Calhoun v United States (1967, CA5 Miss) 384 F2d 180, where the plaintiffs were appealing from what they allegedly considered an inadequate verdict in a condemnation case, it was held that the judgment must be reversed and the case remanded for a new trial on the ground that the failure of the court reporter to record the closing oral arguments of counsel was prejudicial to the plaintiffs. The court noted that the failure to record the closing arguments of counsel violated § 753(b), and that the record, though incomplete, was sufficient to demonstrate prejudicial error with respect to the argument of the government's attorney. The plaintiffs asserted that the government's attorney had stated: "Let's don't give all the money to people from Louisiana and lawyers from Louisiana, let's save some money for the people in Mississippi." The plaintiffs and their attorney were apparently residents of Louisiana, and the court noted that the government's attorney did not deny that he had made the alleged statement before the Mississippi jury which tried the case. The court emphasized that although the record was not complete, it was sufficient to convince the court that the improper statement had been made during the closing argument by the government's attorney, and that prejudice to the plaintiffs had resulted.

Observation

It would appear maintainable that since the main reason for the reversal in the Calhoun Case was the prejudicial remark made by the government's attorney during the closing argument, and since the Court of Appeals learned of this remark and its prejudicial effect despite the reporter's omissions in recording the proceedings, (1) the reversal would have occurred regardless of whether the omissions in recording had occurred, and (2) the omissions in recording thus did not affect the decision whether or not to grant a reversal and thus could not properly be regarded as prejudicial. Consequently, it would appear maintainable (1) that the reversal could properly have been based solely on the court's conclusion that the remark by the government's attorney was improper and prejudicial, and (2) that the court's statement that the omissions by the reporter in recording the closing arguments were prejudicial was both unnecessary and inaccurate.

In United States v Upshaw (1971, CA5 Ala) 448 F2d 1218, a conviction involving the interstate transmission of forged instruments was reversed as to one of the defendants because, in accordance with the local practice of the District Court, the opening statements and closing arguments of the defense attorneys had not been recorded by the court reporter. The attorney who was appointed to represent the defendant on appeal was not the same attorney who had represented the defendant at the trial, and the defendant's attorney on appeal had no independent knowledge of trial events except as revealed by the transcript, but the incomplete transcript revealed conflicting evidence as to which of the defendants did certain incriminating acts, and the defendant's attorney on appeal contended taht at the trial, counsel for a codefendant may have said something which prejudicially affected the defendant's rights. In granting a reversal, the court noted that the language of § 753(b) was clear; that its requirements

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were mandatory and could not be overridden by local practice; that the court could not say affirmatively that no substantial rights of the defendant were adversely affected; and that the court was thus unable to exclude the possibility of any error other than harmless error.

Reversing a conviction involving conspiracy to rob a federally insured bank, and remanding the case for a new trial, in Parrott v United States (1963, CA10 Okla) 314 F2d 46, the court held that the unavailability of a full transcript because of the undisputed failure of the court reporter to comply with § 753(b) made it impossible to determine whether an error by the trial judge was harmless. Pursuant to local practice, the reporter did not record the voir dire examination of the prospective jurors. After discovering that the voir dire examination had not been recorded, the defendant's attorney filed a motion to complete the record and supported the motion with affidavits. It was alleged by the defendant and not denied by the prosecution that during the voir dire examination, the trial judge mentioned three other bank robbery charges which were pending against the defendant in the same court. Although the government contended that this error was harmless, the court concluded that the failure to record the voir dire examination made it impossible to determine whether the error was harmless.

Reversing convictions for burglary and for taking indecent liberties with a minor, and remanding the case for further proceedings, in United States v Workcuff (1970) 137 App DC 263, 422 F2d 700, the court concluded that a court reporter's absence during an instruction to the jury, resulting in the reporter's failure to record or include in the transcript the proceedings involving such instruction, could not be treated as harmless error. It was noted that the instruction in question had been given some time after the jury had retired to deliberate; that the court reporter was inexplicably absent during the additional instruction; and that although the prosecuting attorney had made brief notes as to the substance of the instruction, neither the prosecuting attorney nor the defendant's attorney had any independent recollection of the contents of the additional instruction, and neither attorney could state with assurance whether the defendant's attorney had made any objection to the instruction. While recognizing that several decisions had held that not every violation of § 753(b) constituted reversible error, the court emphasized that in light of the clear language of the statutory mandate, the ease with which its requirements could be satisfied, and the crucial importance of the transcript to meaningful appellate review, such exceptions should be narrowly construed, and the present case was not an appropriate instance for application of the harmless error rule. Moreover, the court emphasized that the harmless error rule was not applicable where the court reporter was absent during such a crucial stage of the trial as the instructions to the jury; that the instruction involved in the instant case was probably accorded particular significance by the members of the jury, because they were returned to the courtroom specifically for the purpose of receiving this additional instruction; that in such a situation, the Court of Appeals, being unable to examine the precise language of the instruction and the circumstances in which it was given, could not say that no substantial right of the defendant was affected; and that the absence of this information, as a result of the reporter's failure to record the instruction, constituted a fatal defect.

CUMULATIVE SUPPLEMENT

Cases:

When criminal defendant is represented on appeal by counsel other than attorney at trial, absence of substantial and significant portion of record contrary to 28 U.S.C.A. § 753(b) will result in presumption of prejudice sufficient to mandate reversal. United States v Brumley (CA5 Ga) 560 F2d 1268.

When criminal defendant is represented on appeal by counsel other than attorney at trial, absence of substantial and significant portion of record required by 28 U.S.C.A. § 753(b) is sufficient to mandate reversal even absent any showing of specific prejudice or error; although appellant alleged no specific error to have occurred during unreported closing arguments of defense and government counsel, fact that his new appellate counsel was foreclosed from examining for possible error substantial and crucial portion of trial rendered illusory appellant's right to appeal and appellant was under no burden to show specific prejudice. United States v Selva (CA5 Fla) 559 F2d 1303.

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It is the duty of the district court to comply with the Court Reporters Act, and off–the–record side–bar or bench conferences are improper. 28 U.S.C.A. § 753(b). U.S. v. Haber, 251 F.3d 881 (10th Cir. 2001).

[Top of Section]

[END OF SUPPLEMENT]

§ 5[c] Omissions in recording as prejudicial, so as to warrant relief under particular circumstances: where judgment is challenged directly, on motion for new trial or on appeal—Omissions held to necessitate remand for hearing as to whether prejudicial error occurred

There is some authority supporting the view that even where an appellant has failed to specify any particular error which was unrecorded or any particular way in which he was allegedly prejudiced as a result of a Federal District Court reporter's omissions in recording judicial proceedings, an appellate court, if it concludes on direct review that it cannot determine whether or not any prejudice resulted from the reporter's omissions, should remand the case to the District Court for a hearing as to whether prejudicial error occurred.

Thus, vacating the defendant's conviction of interstate transportation for the purpose of prostitution, in Brown v United States (1963, CA9 Wash) 314 F2d 293, the court concluded that the case must be remanded for a hearing to determine whether the defendant was prejudiced by an error consisting of the court reporter's failure to record the closing arguments of counsel. It was emphasized that if the trial court, after holding such a hearing, concluded that the defendant was so prejudiced, a new trial could be ordered, and that if the trial court concluded that the defendant was not so prejudiced, a new final judgment against him could be entered. The court noted that the defendant had not suggested any error which might have occurred in the prosecuting attorney's summation, and that if the closing arguments of counsel contained no error affecting the defendant's substantial rights, then the failure to record those arguments would be harmless error. The court emphasized that it was not compelled to set aside a valid conviction because of an error which may have been wholly harmless, in order to be sure that the court was not, through ignorance of the facts, denying relief for an error which prejudiced the defendant's substantial rights. In vacating the conviction and remanding the case for a hearing, the court noted that the trial judge, the prosecuting attorney, the defendant's trial counsel, the reporter, and the defendant himself, as well as other witnesses, would be available to testify as to what transpired during the unrecorded arguments of counsel.

Comment

In a dissenting opinion by Judge Duniway in the Brown Case, supra, it was maintained that since no assertion was made that if the closing arguments had been recorded, any misconduct on the part of the prosecutor, or any other error, much less prejudicial misconduct or error, would have been disclosed, and since no attempt had been made to use the procedures available for providing a supplemental record, the case should not have been remanded for the purpose of attempting to discover prejudicial error, but the court should have been governed by the presumption that in the absence of an affirmative showing, no such error existed.

Caution

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Although the views expressed in the majority opinion in the Brown Case, supra, are similar to those expressed in a dissenting opinion by Chief Judge Biggs in **United States v Sigal (1965, CA3 Pa) 341 F2d 837**, cert den **382 US 811, 15 L Ed 2d 60, 86 S Ct 23**, supra **§ 5[a]**, the reasoning in several of the cases discussed in **§ 5[a]**, supra, appears consistent with Judge Duniway's dissenting opinion and inconsistent with the majority opinion in the Brown Case.

§ 6[a] Where judgment is challenged collaterally, on motion to vacate sentence under 28 U.S.C.A. § 2255—Omissions held not ground for § 2255 relief

[Cumulative Supplement]

Several cases have held that where § 753(b) was violated by means of a Federal District Court reporter's omissions in recording criminal proceedings, such omissions did not constitute a ground for relief on a motion to vacate sentence under 28 U.S.C.A. § 2255. (In § 2255 it is provided, among other things, that a federal prisoner may move to vacate or set aside his sentence on the ground that "the sentence was imposed in violation of the Constitution or laws of the United States, or that the court was without jurisdiction to impose such sentence, or that the sentence was in excess of the maximum authorized by law, or is otherwise subject to collateral attack.") Some of these cases appear to have suggested that even if the reporter's omissions in recording would have been a ground for a direct attack on the conviction, such omissions were not a ground for a collateral attack under § 2255; other cases denying collateral relief under § 2255 appear to have suggested that the reporter's omissions in recording would not, under the particular circumstances involved, even have been a ground for a direct attack on the conviction.

Thus, affirming a judgment denying a defendant's motion to vacate sentence under § 2255, where the defendant had been convicted for violating a federal extortion statute, in Stirone v United States (1965, CA3 Pa) 341 F2d 253, cert den 381 US 902, 14 L Ed 2d 284, 85 S Ct 1446, the court held that the court reporter's failure to record the voir dire examination of the prospective jurors constituted harmless error, since (1) nothing occurred during the voir dire examination to the detriment of the defendant, (2) the lack of a transcript covering the voir dire examination was never suggested as damaging any defense point either for a new trial or on appeal, and (3) it was not claimed on the present § 2255 motion either that there was error of any kind in the voir dire examination itself or that the failure of the reporter to record the voir dire examination resulted in substantial error. In concluding that the failure of the court reporter to record the voir dire examination was not a ground for relief on a § 2255 motion, the court noted that although the defendant's attorney had had every opportunity to do so, he had not raised this issue at the trial, on a motion for new trial, or on appeal.

Affirming the denial of a motion to vacate sentence under § 2255, in United States v Bebik (1964, CA4 NC) 333 F2d 736, the court, while recognizing that it constituted a violation of § 753(b) for the court reporter to fail to record the closing arguments of counsel in a criminal trial, emphasized that the defendants had failed to make any specific suggestion as to how anything occurring in the closing arguments which went unreported might have been prejudicial, and that the reporter's omissions in recording therefore did not constitute a ground for relief on a § 2255 motion.

In United States v Smith (1964, CA4 NC) 337 F2d 49, cert den 381 US 916, 14 L Ed 2d 436, 85 S Ct 1542, the court, affirming a judgment denying a motion to vacate sentence under § 2255, held that although the defendant challeged the validity of his waiver of the right to counsel at his criminal trial, and although the stenographic notes of the court reporter at the criminal trial failed to show much of that which transpired in connection with the waiver of counsel, because the reporter failed to actually record the events which took place, such a failure, while violative of § 753(b), was not such an error as to entitle the defendant to relief in a collateral proceeding under § 2255.

In Casados v United States (1966, CA5 Tex) 354 F2d 688, cert den 385 US 869, 17 L Ed 2d 96, 87 S Ct 136, the court, affirming a judgment denying a § 2255 motion, held that where the defendant, who had been convicted of violating federal marijuana

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laws, contended that at his trial counsel had conferred with the trial judge at the bench without the presence of the court reporter to take down the proceedings as required by § 753(b), this was not a question which could be raised in a § 2255 proceeding.

Also, see Aeby v United States (1969, CA5 Tex) 409 F2d 1, wherein the court held that although no record of the closing arguments in a criminal trial was in existence, a failure to comply with § 753(b) was not a ground for relief on a motion to vacate sentence under § 2255. (It appears unclear, however, whether the court was concerned with omissions in recording or with some other form of noncompliance with § 753(b), since the court's opinion did not specify whether (1) the closing arguments had never been recorded by the reporter or (2) the closing arguments had been recorded, but the records had not been preserved.) The court noted that the failure to comply with § 753(b) was not a ground for relief in the absence of allegations of specific facts which, if true, would constitute reversible error, and that such allegations were lacking in the instant case.

Affirming a judgment denying a motion to vacate sentence under § 2255, in Houston v United States (1969, CA5 Ga) 419 F2d 30, the court held that even if § 753(b) was violated by the court reporter's failure to record a conversation between the trial judge and the jury foreman during the defendant's criminal trial, this did not constitute a ground for relief in the § 2255 proceedings. It was alleged by the defendant that the unrecorded conversation occurred in open court at which counsel were present, but not within earshot. Rejecting the defendant's request for relief, the court noted that at no time prior to filing the § 2255 motion did the defendant raise this issue; that although the defendant's attorney was present in the courtroom at the time the alleged conversation occurred, no objection was made at such time; and that on direct appeal from the defendant's conviction and upon a full review of the trial, no suggestion of error or prejudice had been made in this regard. The court pointed out that a § 2255 motion was not a substitute for an appeal with respect to alleged errors committed at the trial; that this was especially applicable to the instant case, in which the alleged conversation had occurred in open court within the unfettered observation of the defendant's attorney, who had full opportunity to object or to make a simple suggestion that he be made privy to the conversation and that a record be made; and that belated suggestions of possible prejudice in such circumstances were not favored on collateral attack, especially following a full review on direct appeal from the conviction. Moreover, the court emphasized that no suggestion of specific error or prejudice in connection with the unrecorded conversation was made in the instant case.

In Brown v United States (1963, CA9 Wash) 314 F2d 293, it was recognized that a defendant's contention that it constituted reversible error for a court reporter to fail to record the closing arguments of counsel would be without merit if presented in a collateral attack upon his conviction. While holding on direct review of the defendant's conviction that the case had to be remanded for a hearing to determine whether the defendant was prejudiced by the reporter's failure to record the arguments of counsel, the court noted that the failure to record counsel's summation, without more, though error, was an error which was neither jurisdictional nor constitutional, and that such an error would not, of itself, require the granting of collateral relief. The court pointed out, however, that if a denial of the defendant's rights in some other respect were alleged, the absence of a record might be a significant factor in determining whether, under all the circumstances, there had been a denial of fundamental fairness, such as to warrant collateral relief.

CUMULATIVE SUPPLEMENT

Cases:

Naked violation of Reporter's Act, requiring that verbatim record be made of all proceedings in criminal cases, cannot be raised collaterally on a motion to vacate, set aside, or correct conviction or sentence. 28 U.S.C.A. §§ 455, 2255. DeLuca v. U.S., 243 F. Supp. 2d 982 (E.D. Mo. 2003).

[Top of Section]

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[END OF SUPPLEMENT]

§ 6[b] Where judgment is challenged collaterally, on motion to vacate sentence under 28 U.S.C.A. § 2255—Omissions held to necessitate § 2255 hearing

It has been held, on appeal from the denial of a § 2255 motion, that where a court reporter's omissions in recording criminal proceedings constituted a failure to comply with § 753(b), and where the unrecorded matters allegedly included certain specified errors, the case should be remanded for a hearing at which it would be determined whether the alleged unrecorded errors had actually occurred and whether the defendant's sentence should therefore be vacated.

Thus, in United States v Taylor (1962, CA4 NC) 303 F2d 165, it was held that the court reporter had failed to comply with the requirement that he record all proceedings in a criminal case had in open court, and that on a motion to vacate sentence under § 2255, the reporter's omissions were a factor requiring that a hearing be held for the purpose of determining whether, as claimed by the defendant, the unrecorded matters included errors consisting of (1) the trial judge's failure to comply with procedural requirements governing the acceptance of a plea of guilty, and (2) the trial judge's failure to grant the defendant his right of allocution before sentence was imposed. The reporter did not take complete notes of the arraignment proceedings and the plea of guilty, and the reporter followed the trial judge's instruction that he not record the arguments with respect to the imposition of sentence. Noting that the records did not show that the defendant had been accorded his right of allocution or that the trial judge, prior to accepting the plea of guilty, had determined that the plea was made voluntarily with understanding of the nature of the charge, the court stated that although the failure to keep complete records of the criminal proceedings was not, of itself, an error which could be raised by a motion to vacate sentence under § 2255, it was a matter which could be considered in a § 2255 proceeding in determining whether a defendant was entitled to a hearing on a motion to vacate sentence and in determining whether the sentence should be vacated. It was concluded that in the present case, in which the records were incomplete, and in which the findings of the court had to depend at least in part upon memory of what took place, it was necessary to remand the case for a hearing at which all of the persons who took part in the arraignment and sentencing would be given an opportunity to testify as to whether the trial had complied with the requirements as to allocution and as to acceptance of a guilty plea. Emphasizing that it was important to comply with the requirement of § 753(b) that the proceedings in criminal cases shall be recorded, the court noted that if the statute had been complied with in the present case, and if the record had disclosed that the requirements as to allocution and acceptance of the guilty plea had been met, the defendant's motion to vacate sentence might well have been dismissed without a hearing.

Also, see Brown v United States (1963, CA9 Wash) 314 F2d 293, supra §§ 5[c], 6[a], wherein the court recognized that if a denial of a defendant's rights in some other respect were alleged, a reporter's omissions in recording criminal proceedings might be a significant factor in determining whether, under all the circumstances, there had been a denial of fundamental fairness, such as to warrant collateral relief under § 2255.

§ 6[c] Where judgment is challenged collaterally, on motion to vacate sentence under 28 U.S.C.A. § 2255—Omissions held ground for relief

[Cumulative Supplement]

CUMULATIVE SUPPLEMENT

Cases:

Failure of strict compliance with 28 U.S.C.A. § 753(b) requiring court reporter to be present at all proceedings in criminal cases had in open court and to report such proceedings and file his transcript will result in unnecessary post-conviction hearings to determine what was done when most accurate record is transcript of what actually took place; hence, guilty plea to unlawful transportation in interstate commerce of stolen motor vehicle must be stricken and defendant afforded rights to plead anew where there was no record of proceedings at which plea was accepted. Herron v United States (CA4 NC) 512 F2d 439.

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[Top of Section]

[END OF SUPPLEMENT]

§ 7. Waiver of right to complain of omissions

[Cumulative Supplement]

It has been held under certain circumstances that there was an effective waiver of the right to complain of a Federal District Court reporter's omissions in recording judicial proceedings, even where it could be assumed that such omissions constituted a violation of § 753(b).

Thus, concluding that the failure of the court reporter to record the voir dire examination of prospective jurors, though constituting a failure to comply with § 753(b), was not a ground for reversing convictions for violations of federal wagering tax laws, in United States v Sigal (1965, CA3 Pa) 341 F2d 837, cert den 382 US 811, 15 L Ed 2d 60, 86 S Ct 23, the court held that there was an effective waiver of the requirement that the court reporter record the voir dire examination. After the voir dire examination had been conducted, apparently in the presence of an assistant clerk rather than in the presence of a judge, the defendants and their attorneys signed a statement saying that they waived the right to have the jury selected in the presence of a judge, and that they were "satisfied and agreeable to the procedure applied to the selection of the jury." In holding that this statement constituted a waiver of the right to assert that § 753(b) was violated, the court noted that at the time of the defendants' trial, the local practice was not to report the voir dire examination, and that the defendants' attorneys, who were solidly grounded in this practice, expressed their full acceptance of the procedure followed at the voir dire examination, including the failure to record the voir dire examination.

Comment

It was maintained in a dissenting opinion by Chief Judge Biggs in the Sigal Case, supra, that the statement by the defendants and their attorneys did not constitute an express waiver of their right to raise the **§ 753(b)** issue involving the reporter's failure to record the voir dire examination; that the statement should be construed as being no broader than a consent to the judge's absence during the examination of the jurors and to the procedure of having the questions propounded to the jurors by an assistant clerk rather than by the judge or by counsel; that the record did not indicate whether a court reporter was present and failed to record the voir dire examination; that the record failed to indicate whether the defendants or their attorneys were aware or unaware whether a court reporter was present; that if a court reporter was present, the record did not indicate whether or not the defendants or their attorneys knew that the reporter was not recording the voir dire examination; and that if a court reporter was present, but was not recording the examination, and if the defendants and their attorneys were unaware of that fact, there could scarcely be an implied waiver of the provisions of **§ 753(b)**.

To the same effect as the holding in the Sigal Case, supra, is United States v Sams (1963, DC Pa) 219 F Supp 164, convictions affd in part on other grounds and vacated in part on other grounds (CA3) 340 F2d 1014, cert den 380 US 974, 14 L Ed 270, 85 S Ct 1336, where the defendants and their attorneys had signed a statement saying that they waived the right to have the jury selected in the presence of the judge and that they were satisfied and agreeable to the procedure applied to the selection of the

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jury, and where it was held that the defendants had thereby waived any defects with respect to the court reporter's violation of § 753(b) by not being present during the entire period when the jury was being selected. The court noted that the § 753(b) issue was not raised until the briefs and argument upon the motion for a new trial, and that raising the issue at such a late stage in the proceedings was untimely. The court also noted that if the defendants had made a timely indication that they considered it of importance to have a reporter present when the jury was being selected, the situation could then have been easily remedied, since a court reporter was available and the defendants could have obtained his presence at any time if they had so desired.

As supporting, at least by implication, the position that the failure to make timely objection to the court reporter's omissions in recording criminal proceedings constituted a waiver of the right to complain of such omissions, see Stirone v United States (1965, CA3 Pa) 341 F2d 253, cert den 381 US 902, 14 L Ed 2d 284, 85 S Ct 1446; Houston v United States (1969, CA5 Ga) 419 F2d 30, both supra § 6[a].

In Addison v United States (1963, CA5 Tex) 317 F2d 808, cert den 376 US 905, 11 L Ed 2d 605, 84 S Ct 658, reh den 376 US 966, 11 L Ed 2d 984, 84 S Ct 1121, the court recognized that the requirement that the court reporter record criminal proceedings was subject to waiver by a party, and the court noted that the failure of the court reporter in the instant case to record the closing arguments of counsel occurred by consent of the parties.

♦

It has been suggested in one case that even if the defendant has failed to object to a Federal District Court reporter's omissions in recording criminal proceedings, such omissions, where violative of § 753(b), may at least under certain circumstances constitute "plain error" which may properly be noticed despite the failure to object.

Thus, in Brown v United States (1963, CA9 Wash) 314 F2d 293, it was recognized that even if a defendant's attorney did not object to the failure to record the closing arguments at a criminal trial or to anything which the prosecuting attorney said in his closing arguments, it was nevertheless possible under certain circumstances for such error to constitute plain error which could be noticed despite the defendant's failure to oject.

Observation

Rule 52(b) of the Federal Rules of Criminal Procedure provides: "Plain errors or defects affecting substantial rights may be noticed although they were not brought to the attention of the court."

It has been suggested in another case that since § 753(b)(1) requires the court reporter to record verbatim "all proceedings in criminal cases had in open court," and since § 753(b)(2) expressly provides that the parties may specifically agree to omit recording with respect to civil proceedings in open court, but § 753(b)(1) contains no similar provision with repect to criminal proceedings, the requirement of § 753(b)(1) that all criminal proceedings in open court be recorded is not even subject to waiver.

Thus, in Stansbury v United States (1955, CA5 Tex) 219 F2d 165, the court, besides reversing on other grounds a conviction involving the sale of marijuana, expressed doubt whether it was proper to fail to record conferences conducted outside the hearing of the jury, and recognized that the requirement of § 753(b) that "all proceedings in criminal cases had in open court" be recorded verbatim could apparently not be waived, since § 753(b)(2) provided that there must be a specific agreement to

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waive recording in "other cases," and since the provision of § 753(b)(1) pertaining to criminal proceedings in open court did not provide that there could be any agreements to waive recording of such proceedings.

Caution

In the Stansbury Case, supra, the court's reasoning on the **§ 753(b)** issue appeared in merely a brief dictum contained in a footnote, but the Court of Appeals for the Fifth Circuit, while neither citing the Stansbury Case nor expressly rejecting its reasoning, decided a later case—**Addison v United States (1963, CA5 Tex) 317 F2d 808**, cert den **376 US 905, 11 L Ed 2d 605, 84 S Ct 658**, reh den **376 US 966, 11 L Ed 2d 984, 84 S Ct 1121**, supra—on the basis of reasoning which appears inconsistent with that appearing in the Stansbury dictum.

CUMULATIVE SUPPLEMENT

Cases:

Defendants effectively waived objection to "off-the-record" side bar discussions, especially in light of their failure to state any particular substantive errors court may have made during these discussions, where lawyers for defendants went beyond merely acquiescing in trial court's procedure and directive to "go off the record" came from defendant's counsel in number of instances. United States v Gallo (1985, CA6 Ohio) 763 F2d 1504, cert den (US) 88 L Ed 2d 798, 106 S Ct 826 and cert den (US) 88 L Ed 2d 800, 106 S Ct 828 and cert den (US) 89 L Ed 2d 314, 106 S Ct 1200.

Although compliance with 28 U.S.C.A. § 753(b) is mandatory, waiver without personal consent of defendant is permissible, so that defense counsel in securities fraud case who withdrew objection to reporter's absence during part of discussion regarding proposed jury instructions could not re-assert objection to reporter's absence on appeal. United States v Weiner (1978, CA9 Cal) 578 F2d 757, CCH Fed Secur L Rep ¶ 96541, cert den 439 US 981, 58 L Ed 2d 651, 99 S Ct 568, reh den 439 US 1135, 59 L Ed 2d 98, 99 S Ct 1060.

[Top of Section]

[END OF SUPPLEMENT]

§ 8. Curing of omissions

It has been suggested that if a court reporter has violated § 753(b) by failing to record certain judicial proceedings, such omissions in recording may be cured by such means as a supplemental record setting forth the matters which have not been recorded.

Thus, affirming a conviction of bank fraud, in Hale v United States (1970, CA5 Ala) 435 F2d 737, cert den 402 US 976, 29 L Ed 2d 142, 91 S Ct 1680, the court, besides rejecting the defendant's contention that he had been deprived of a fair trial because of the jurors' exposure to certain publicity, referred to the defendant's contention that reversible error occured when the court reporter failed to record a special qualification of the jury, and the court concluded that it need not deal with this issue, since a supplemental record on appeal had been filed and had set forth verbatim the special qualification voir dire.

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Comment

As to the procedures relating to the use of a supplemental record on appeal, see **Rule 10(e) of the Federal Rules of Appellate Procedure**, discussed in **§ 3[b]**, supra.

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Footnotes

1 While dealing with the general question whether a reporter's omissions in recording judicial proceedings were prejudicial in the sense of warranting a District Court or appellate court in ordering a new trial, and while also dealing with such specific questions as whether the right to object to such omissions was waived, or whether such omissions were cured, or whether such omissions could properly serve as a basis for relief on a motion to vacate sentence under 28 U.S.C.A. § 2255, the annotation does not deal with cases in which it merely was held or recognized that a reporter's omissions in recording judicial proceedings would constitute a failure to comply with the Court Reporter Act, but in which the court did not purport to determine the prejudicial effect of such omissions. For example, if an omission in recording is merely one of several errors which, treated collectively, are held to warrant the granting of a new trial, but if the court does not discuss the prejudicial effect of the omission itself, the case is not treated herein.

2 Being concerned solely with a reporter's omissions, that is, his failure to record all or part of a particular judicial proceeding, the annotation does not deal with a reporter's errors of commission, that is, his mistakes in recording what he has recorded.

3 The present annotation deals solely with omissions in recording and is not concerned with such matters of the loss or destruction of a reporter's records or the failure to provide a transcript of proceedings which apparently were fully recorded.

4 The annotation does not deal with cases in which the court holds or assumes that a reporter's omissions in recording judicial proceedings did not constitute a failure to comply with the Court Reporter Act.

5 For the sake of brevity, the provisions of the Court Reporter Act which are relevant to the present annotation are generally referred to herein as simply § 753(b).

6 As originally enacted on January 20, 1944, the Court Reporter Act (58 Stat 5), which was then designated as § 9a of the Judicial Code (Title 28 of U.S.C.A.), contained the words "whether in connection with plea, trial, or sentence" after the words "all proceedings in criminal cases had in open court," but when the Judicial Code was recodified in 1948, and former § 9a became § 753, the words "whether in connection with plea, trial, or sentence" were omitted.

7 § 4, infra.

8 §§ 4, 5[a], 6[a], infra.

9 §§ 5[a], 5[b], 6[a], infra.

10 § 6[a], infra.

11 See the dissenting opinion by Chief Judge Biggs in United States v Sigal (1965, CA3 Pa) 341 F2d 837, cert den 382 US 811, 15 L Ed 60, 86 S Ct 23, infra § 5[a], and see United States v Workcuff (1970) 137 App DC 263, 422 F2d 700, infra § 5[b].

12 §§ 5[c], 6[b], infra.

13 § 7, infra.

14 § 8, infra.

15 As to the use of a supplemental record as a means of remedying a court reporter's omissions in recording, see, for example, Marron v Atlantic Refining Co. (1949, CA3 Pa) 176 F2d 313, cert den 339 US 923, 94 L Ed 1345, 70 S Ct 611.

16 See, for example, Hale v United States (1970, CA5 Ala) 435 F2d 737, cert den 402 US 976, 29 L Ed 142, 91 S Ct 1680, infra § 8.

17 See, for example, the cases discussed in § 5[b], 5[c], infra.

18 See, for example, United States v Workcuff (1970) 137 App DC 263, 422 F2d 700, infra § 5[b].

19 § 7, infra.

20 See, for example, United States v Murray (1965, CA4 Md) 352 F2d 397, wherein it was held that even if the requirement of § 753(b) that the court reporter shall record "all proceedings in criminal cases had in open court" was not subject to waiver, a proceeding involving a mere parking violation was not includible among the "criminal cases" subject to this requirement and therefore did not need to be recorded.

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